ODVA APPLICATION AND AGREEMENT FOR MEMBERSHIP AND TERMS OF USAGE

ODVA's Application and Agreement for Membership and Terms of Usage, including all Exhibits and Schedules, (collectively, the "Agreement") is a foundational document behind ODVA's large and vibrant community of adopters. It includes a license agreement between ODVA and each entity that is licensed by ODVA to make and sell products using ODVA technologies (an "Entity"). This Agreement defines Entity's responsibilities and rights in connection with use of the licensed ODVA technologies and, if applicable, membership in ODVA. Entity is licensed to use only those ODVA technologies listed and selected by it in Section 3 of this Agreement. Unless otherwise defined herein, capitalized terms used in this Agreement shall have the meanings set forth in Schedule A attached hereto.

1. ENTITY INFORMATION

Entity shall at all times be an entity, (i.e., corporation, limited liability company) and not an individual.
All information must be completed.

A. Company Name (Public-Facing).

_____
BUSINESS NAME/TRADENAME OF ENTITY TO BE DISPLAYED AT WWW.ODVA.ORG AND OTHER PUBLIC LISTS OF ODVA

_____
PRIMARY WEB SITE ADDRESS FOR THIS BUSINESS

_____
URL OF BUSINESS MOST CLOSELY RELATED TO ODVA TECHNOLOGIES

B. Corporate Legal Name of Entity.

_____
CORPORATE LEGAL NAME, AS FILED WITH ENTITY'S ARTICLES OF INCORPORATION, CERTIFICATE OF FORMATION, OR OTHER GOVERNING CORPORATE DOCUMENTS

_____
STREET ADDRESS

_____ _____ _____
CITY STATE/PROVINCE ZIP/POST CODE

_____ _____
COUNTRY TELEPHONE

_____
WEB SITE

_____
LOCATION OF INCORPORATION OR ESTABLISHMENT (CITY, STATE/PROVINCE, COUNTRY)

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C. Parent Company: Is Entity reflected in Section 1B directly or indirectly owned or controlled (50% or more) by another person or entity?

○ YES

○ NO

If "yes", please complete the following.

_____
LEGAL NAME OF ULTIMATE PARENT OF ENTITY, AS FILED WITH SUCH PARENT COMPANY'S ARTICLES OF INCORPORATION, CERTIFICATE OF FORMATION, OR OTHER GOVERNING CORPORATE DOCUMENTS

_____
STREET ADDRESS

_____ _____ _____
CITY STATE/PROVINCE ZIP/POST CODE

_____ _____
COUNTRY TELEPHONE

_____
WEB SITE

_____
LOCATION OF INCORPORATION OR ESTABLISHMENT (CITY, STATE/PROVINCE, COUNTRY)

D. Contacts.

The information for designated representatives of the Entity (each a "Designated Representative") may be updated in the official records of ODVA upon the written request of Entity at any time during the term of this Agreement.

i. Designated Representative.

For Members, *each Member shall appoint a Designated Representative to ODVA who shall receive all official correspondence and notices from ODVA to its Members. For all purposes where action is to be taken by the Members as set forth in the Bylaws of ODVA ("Bylaws"), or where the presence or absence of Members is to be determined, the action, presence or absence of a Member's Designated Representative shall be deemed to be the action, presence or absence of the Member for such purposes.*

For Non-Members, *the Designated Representative shall serve as primary contact regarding technology licensing.*

_____ _____
NAME TITLE/OFFICE WITHIN ENTITY

_____
STREET ADDRESS

_____ _____ _____ _____
CITY STATE/PROVINCE ZIP/POST CODE COUNTRY

_____ _____
BUSINESS PHONE MOBILE/CELL PHONE

_____ _____
EMAIL PREFERRED HONORIFIC, IF ANY (e.g., Mr., Ms., Dr., -san)

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ii. Accounts Payable Contact.

NAME _____ TITLE/OFFICE WITHIN ENTITY _____

STREET ADDRESS _____

CITY _____ STATE/PROVINCE _____ ZIP/POST CODE _____ COUNTRY _____

BUSINESS PHONE _____ MOBILE/CELL PHONE _____

EMAIL _____

E. Qualifications for Technology Licensing or Membership.

i. Reasons for Joining ODVA or Licensing ODVA Technology.

To help ODVA better understand your needs, please explain briefly why you have decided to apply:

ii. Hardware and/or Software Products that Integrate ODVA Technologies.

ODVA Technologies Being Integrated (complete all that apply)	**Date of First Manufacture or Implementation** (i.e., month and year)	**Does Entity have a Vendor ID from ODVA for the technology?** (if yes, enter Vendor ID number)
EtherNet/IP		
DeviceNet		
ControlNet		
CompoNet		
Description of Products:		

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2. MEMBERSHIP.

A. Class of ODVA Membership.

An Entity may hold membership in only one class of ODVA membership at any given time. An Entity must also complete Section 3 to become a Licensed Vendor.
Please select the desired ODVA membership for Entity:

- ○ Principal (voting, 50% discounts on base price of specifications, test software, and conformance test services; requires Board of Directors approval)
- ○ Regular (voting, 50% discounts on base price of specifications, test software, and conformance test services)
- ○ Associate (non-voting, 25% discounts on base price of specifications, test software, and conformance test services)
- ○ Non-Member (not eligible for membership privileges or discounts)
- ○ Please contact me to discuss membership options

B. Entity Logo.

Please provide Entity's current logo in JPG or PNG format (250 px width minimum). Send separately to odva@odva.org.

3. ODVA TECHNOLOGY TO WHICH ENTITY SEEKS TO BECOME A "LICENSED VENDOR."

An Entity must become a licensed vendor of ODVA to each ODVA technology selected below for which this Agreement is being submitted:

- ☐ EtherNet/IP (includes CIP along with CIP distinctive services, CIP Safety, CIP Energy, CIP Motion, CIP Security, and CIP Sync, plus the EtherNet/IP Adaptation of CIP)
- ☐ DeviceNet (includes CIP along with CIP distinctive services, CIP Safety and CIP Energy, plus the DeviceNet Adaptation of CIP)
- ☐ ControlNet (includes CIP along with CIP distinctive service CIP Energy, plus the ControlNet Adaptation of CIP)
- ☐ CompoNet (includes CIP along with CIP distinctive service CIP Energy, plus the CompoNet Adaptation of CIP)
- ☐ CIP Safety on SERCOS III (must already have or obtain a license for SERCOS III from SERCOS International)

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4. REPRESENTATIONS AND ASSURANCES

By having the authorized representative of the Entity sign below, Entity hereby acknowledges and agrees to the Terms and Conditions of Licensing set forth on Exhibit A and attached hereto and, if applying for ODVA Membership, the Terms and Conditions of Membership set forth on Exhibit B attached hereto. Entity represents and warrants the following:

- The information contained in this Agreement and all Schedules attached hereto is true and correct.
- Entity manufactures, or exhibits well-documented plans to manufacture, hardware and/or software products that (A) integrate ODVA technologies, or (B) are designed to enhance the implementation, operation and/or support of hardware and/or software products that integrate ODVA technologies in a multi-vendor systems environment.
- Entity understands that the licenses for Vendor IDs and ODVA technologies and trademarks are conveyed by ODVA through this Agreement and in consideration of fees between the Entity and ODVA.
- Entity agrees to comply with the terms of this Agreement as a condition of its membership and licensing, and understands that its participation in specific ODVA activities, groups, bodies, and committees may be subject to additional requirements, agreements and/or fees, including all ODVA policies.
- The authorized representative signing this Agreement has authority to enter into this Agreement on behalf of Entity and to bind Entity and Entity's Affiliates to the obligations of this Agreement, including without limitation the provisions of Sections 1.2 and 5.5 of the Terms and Conditions of Licensing set forth on Exhibit A to this Agreement.

Submitted and Accepted by Entity:
Please complete in the English language.

_____
SIGNATURE OF AUTHORIZED REPRESENTATIVE

_____
PRINT NAME

_____
TITLE OR OFFICE

_____
DATE OF APPLICATION

****
THE ITEM BELOW WILL BE COMPLETED BY ODVA.

Accepted and Approved by ODVA:

_____
Al Beydoun, Ph.D., President and Executive Director

_____
Date

_____
Vendor ID Assigned

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INITIALS OF AUTHORIZED REPRESENTATIVE: _____ **DATE:** _____

EXHIBIT A
TERMS AND CONDITIONS OF LICENSING

These Terms and Conditions of Licensing (the "Terms") constitute a legally binding agreement between ODVA, Inc. ("ODVA") and Entity (as a "Licensed Vendor") identified on the Application and Agreement for Membership and Terms of Usage, including all Exhibits and Schedules (collectively and together with the Terms, the "Agreement"). Unless otherwise defined herein, capitalized terms used in these Terms shall have the meanings set forth in Schedule A attached hereto and the Agreement.

1. User Responsibilities.

1.1. Licensed Vendor agrees to:

1.1.1. Follow the design specifications set forth in the Licensed Technology, and other rules and guidelines as published by ODVA from time to time, and to refrain from modifying, reproducing, or disseminating the Licensed Technology without prior written consent of ODVA;

1.1.2. Obtain and use the Vendor ID in accordance with ODVA Policies and not (i) change, loan, or assign the Vendor ID (except to Affiliates if previously approved in writing by ODVA), or (ii) use the Vendor ID in or with any products other than Compliant Products or for any other unauthorized purpose;

1.1.3. Obtain and maintain its specification subscription(s) to the Licensed Technology;

1.1.4. Obtain and maintain Declarations of Conformity from ODVA for its Compliant Products as prescribed by ODVA in its Policies;

1.1.5. Permit ODVA or its agents, upon demand, but no more than once annually, to test its Compliant Products for their conformance with the Licensed Technology;

1.1.6. Make a conspicuous statement in the printed or electronic documentation that is provided to the users of its Compliant Products ("Customers") that such Products conform with the Licensed Technology;

1.1.7. Produce and supply reasonably complete product documentation, in printed or electronic form, for Customers specifying the following aspects that may be present in its Compliant Products: (i) optional features described in the Licensed Technology; (ii) implementation-dependent parameters of its Compliant Products; and (iii) features of its Compliant Products that might be considered additions to the requirements of the Licensed Technology;

1.1.8. Comply with all ODVA Policies; and

1.1.9. Follow any supplemental requirements for the applicable Licensed Technology covered by this Agreement, as set forth on Schedule B attached hereto as of the Effective Date. Any subsequent changes to Schedule B will be subject to Section 5.20 hereof.

1.2. Licensed Vendor hereby grants to ODVA, with respect to the Licensed Technology, a nonexclusive, nontransferable (except to a successor of substantially all of ODVA's business), worldwide, compensation-free license under its and its Affiliates' Essential Claims in any issued patent covering the Licensed Technology, for use by ODVA to grant sublicenses under the foregoing rights to Other Vendors, solely to make, have made, use, import, offer to sell, sell, lease, market, and to otherwise distribute and dispose of Compliant Products that implement such Licensed Technology, provided that such license shall not extend to features of a Compliant Product that are not necessary to conform with the Licensed Technology.

2. User Rights.

Upon the mutual execution of the Agreement and payment by Licensed Vendor of the related invoice(s), ODVA hereby grants to Licensed Vendor the following rights under the Licensed Technology.

2.1. Patent Licenses. ODVA hereby grants to Licensed Vendor a nonexclusive, nontransferable, nonsublicensable, worldwide, compensation-free license under Essential Claims in any issued patent covering the Licensed Technology (but only those Essential Claims for which ODVA has received the necessary rights -- either from Members under the ODVA Policy Regarding Intellectual Property (the "IPR Policy"), from other Terms of Usage Agreements, or otherwise -- to grant such a compensation-free license), solely to allow Licensed Vendor to make, have made, use, import, offer to sell, sell, lease, market, and to otherwise distribute and dispose of Compliant Products provided that such license shall not extend to features of a product that are not necessary to conform with the Licensed Technology.

2.2. Defensive Termination of Patent Licenses. In the event Licensed Vendor initiates or threatens to initiate a lawsuit against ODVA or any Member (the "Essential Claim Owner"), or against the Essential Claim Owner's Affiliate, relating to Licensed Vendor's (or its Affiliate's) Essential Claim(s) covering the Licensed Technology, the Essential Claim Owner shall have the right, with respect to any Essential Claims of the Essential Claim Owner (or of its Affiliates) that have been licensed to Licensed Vendor by ODVA pursuant to Section 2.1 hereof (the "Terminated Essential Claims"), to: (a) revoke the license granted by ODVA to Licensed Vendor pursuant to Section 2.1, effective upon the provision by the Essential Claim Owner of written notice to Licensed Vendor; and (b) impose a reasonable royalty/fee for Licensed Vendor's past use of the Terminated Essential Claims. Should the Essential Claim Owner choose to permit future use of its (or its Affiliates') Essential Claims by Licensed Vendor, it shall have the right to impose a reasonable royalty/fee for past and future use of the Essential Claim Owner's or its Affiliates' Terminated Essential Claims by Licensed Vendor. ODVA shall have no liability for any losses or damages that Licensed Vendor may incur as a result of any license revocation or imposed royalty/fee pursuant to this Section 2.2, and Licensed Vendor hereby agrees that it will not assert any claims against ODVA arising out of the same.

2.3. Copyright License. ODVA hereby grants to Licensed Vendor a nonexclusive, nontransferable, nonsublicensable, worldwide, compensation-free license to use and reproduce any discrete portions of any Final Specification (but not such Final Specification as a whole) covered by the Licensed Technology solely to the extent necessary to incorporate such portions of the Final Specification(s) into any Compliant Products that implement such Licensed Technology and any associated documentation in

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furtherance of the purposes of Section 1.1.7 hereof, but for no other purposes except with the prior written consent of ODVA. Licensed Vendor will properly credit ODVA as the copyright owner in accordance with the Identity Guidelines.

3. Trademark Authorization.

3.1. Usage. Provided Licensed Vendor complies with all aspects of the Agreement, Licensed Vendor is authorized to use the trademark(s) and conformance tested logo mark(s) and word mark(s) associated with the Licensed Technology (the "Licensed Marks") in conjunction with Licensed Vendor's Compliant Products. Such rights to use such Licensed Marks are nonexclusive, nontransferable, nonsublicensable, worldwide, and compensation-free, and may be terminated if Licensed Vendor fails to comply with all requirements in Section 1 of these Terms. All depictions and use of the Licensed Marks by Licensed Vendor shall comply with the Identity Guidelines and shall be exact electronic or print reproductions of depictions of the Licensed Marks described in such Identity Guidelines or shall be pre-approved by ODVA before their use. If at any time Licensed Vendor's Compliant Products do not conform with the Licensed Technology, Licensed Vendor agrees to terminate its use of the Licensed Marks, immediately upon its own discovery of, or upon notice of, the nonconformance, until such nonconformance is cured. In any case where ODVA has the right to require Licensed Vendor to cease use of the Licensed Marks, it shall also have the right, in accordance with ODVA Policies and in its sole discretion, to revoke any or all licenses under the Licensed Technology and invalidate any or all Vendor ID(s) assigned to Licensed Vendor with the resulting termination of all rights and privileges associated with such Vendor ID(s).

3.2. Respect for ODVA's Marks, Logos, and Names. Licensed Vendor shall not assert any ownership rights in any ODVA trademark, other mark, name, or logo by assuming, reserving, registering, using, or otherwise claiming any mark, logo, or name (including any Internet domain name) owned or already being used by ODVA (or that is confusingly similar to any such ODVA-owned/used mark, logo, or name) as Licensed Vendor's own, whether as a trademark, service mark, certification mark, trade name, domain name, or "doing business as" name ("d/b/a"), alone or in combination with Licensed Vendor's own trademarks or service marks.

3.3. Prohibition on Assertion of Rights. Licensed Vendor agrees not to assert any rights in the Licensed Marks against ODVA, any Member of ODVA, any Other Vendors, or their Affiliates, or to object to the use of the Licensed Marks by such parties.

3.4. Required Use of the Licensed Marks. Licensed Vendor agrees that when it refers to the Licensed Technology, it will use the Licensed Marks or some other means upon the prior written consent of ODVA to accurately describe ODVA as the origin of the Licensed Technology. All such use of the Licensed Marks shall inure to the benefit of ODVA.

3.5. No Warranty. Licensed Vendor uses the Licensed Marks at its own risk.

4. Termination.

4.1. Licensed Vendor shall be considered in default hereunder, and ODVA may terminate the Agreement with respect to any or all Licensed Technology upon: (a) the material breach by Licensed Vendor of the Agreement or any other agreement between Licensed Vendor and ODVA, if such breach is not cured within ninety (90) days of the date ODVA provides Licensed Vendor with written notice of such breach; (b) failure to pay any fees due to ODVA, if such failure is not cured within ninety (90) days of the date ODVA provides Licensed Vendor with written notice of such breach, or (c) termination or expiration of Licensed Vendor's Vendor ID(s).

4.2. Licensed Vendor may terminate this Agreement at any time with respect to any or all Licensed Technology by providing written notice to ODVA. Fees paid by Licensed Vendor for the Final Specification(s) checked on the first page of the Agreement are nonrefundable, unless Licensed Vendor terminates the Agreement within forty-five (45) days after Licensed Vendor's receipt of the copy(ies) of such Final Specification(s) and returns such copy(ies) to ODVA.

4.3. Upon any termination of this Agreement: (a) all rights and licenses granted to Licensed Vendor hereunder for the Licensed Technology shall terminate and Licensed Vendor shall cease all use of the Licensed Marks and Licensed Technology, including, but not limited to, making, having made, using, reproducing, marketing, importing, offering to sell, selling, leasing, and otherwise distributing or disposing of, Compliant Products; and (b) the licenses granted to ODVA and Other Vendors pursuant to Section 1.2 of these Terms shall survive with respect to Essential Claims in existence on the date of such termination, and with respect to Essential Claims covering a Final Specification adopted by ODVA after the termination of the Agreement to the extent such Essential Claims: (i) are necessary for the later-adopted Final Specification to be backwards compatible with the prior Final Specifications representing Licensed Technology covered by the Agreement; and (ii) are used in a substantially similar manner, extent, and result as such Essential Claims were used in such prior Final Specifications; provided, however, that if Licensed Vendor terminated this Agreement within the forty-five (45)-day period specified in Section 4.2 and if Licensed Vendor had not yet implemented such Final Specification(s) in any of its products as of the termination date, Licensed Vendor shall not be obligated to grant the license under Section 1.2 with respect to such Final Specification(s).

5. General.

5.1. Effective Date. This Agreement shall become effective when signed or otherwise assented to by Licensed Vendor and accepted by ODVA (the "Effective Date").

5.2. No Warranty. The parties acknowledge that all information provided as part of the Licensed Technology is provided "AS IS" WITH NO WARRANTIES WHATSOEVER, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, AND ODVA EXPRESSLY DISCLAIMS ANY WARRANTY OF MERCHANTABILITY, NONINFRINGEMENT, FITNESS FOR ANY PARTICULAR PURPOSE, OR ANY OTHER WARRANTY.

5.3. Limitation of Liability. IN NO EVENT WILL ODVA OR ITS LICENSORS BE LIABLE TO ANY OF ODVA'S MEMBERS, LICENSED VENDOR, OR ANY OTHER PERSON FOR THE COST OF PROCURING SUBSTITUTE GOODS OR SERVICES, LOST PROFITS, LOST BUSINESS, LOST DATA, OR LOSS OF USE; OR FOR ANY DIRECT, INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE, OR SPECIAL DAMAGES, WHETHER UNDER CONTRACT, TORT, WARRANTY, OR OTHERWISE, ARISING IN ANY WAY OUT OF THE AGREEMENT, INCLUDING THESE TERMS, OR ANY OTHER RELATED AGREEMENT, WHETHER OR NOT ODVA OR ITS LICENSORS HAD ADVANCE NOTICE OF THE POSSIBILITY OF SUCH DAMAGES.

5.4. Governing Law; Jurisdiction; Arbitration; Venue; Language. The Agreement and any Policies of ODVA shall be construed and controlled by the laws of the State of Michigan, without giving effect to conflict-of-law principles.

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The parties agree that all disputes arising in any way out of this Agreement that cannot be resolved by good faith discussion will be settled by final and binding arbitration in Ann Arbor, Michigan, U.S.A., under the then-current Commercial Arbitration Rules of the American Arbitration Association with the reasonable costs of such arbitration split equally between such parties and with the prevailing party therein entitled to recover its reasonable legal fees and costs thereby incurred, including attorneys' and experts' fees. Any such arbitral award may be enforced in a court of competent jurisdiction. For purposes of enforcement, the parties irrevocably consent to jurisdiction and venue in the state and Federal courts of the State of Michigan. The Agreement has been written in the English language and it may be translated by Licensed Vendor at its own cost and for its own convenience and internal purposes. However, the official version of the Agreement, and the version that shall govern and prevail in all cases, including the case of any difference or disagreement with any such translation, is the English language version.

5.5. Affiliates. Licensed Vendor hereby represents and warrants that it has power to cause all patents owned or controlled by it and all of its Affiliates to be licensed as set forth in the Agreement and that it and its Affiliates have ownership rights in all patents and patent applications covering inventions made by their employees in the course of their employment. If Licensed Vendor breaches the foregoing representation and warranty such that the patents owned or controlled by any such Affiliate are not licensed as set forth in the Agreement, then Licensed Vendor shall indemnify and hold harmless ODVA and any Other Vendors of the Licensed Technology from and against any royalties/fees, liability, or damage incurred by ODVA or such Other Vendors as a result of the failure to obtain such patent license. Licensed Vendor shall be liable for all acts or omissions of its Affiliates. Notwithstanding the foregoing, the Agreement shall not confer any rights on such Affiliates as third-party beneficiaries or otherwise; any of Licensed Vendor's Affiliates that wish to implement any Licensed Technology or other ODVA technology may do so only after submitting a separately completed copy of the most recent version of the Agreement to ODVA and ODVA's acceptance of such Agreement.

5.6. Complete Agreement for All Final Specifications Licensed by Licensed Vendor. The Agreement sets forth the entire understanding of the parties and supersedes all prior agreements and understandings relating hereto, including, but not limited to, any prior Terms of Usage Agreement between ODVA and Licensed Vendor for any Final Specifications managed by ODVA; provided, however, that, if Licensed Vendor is also a Member, then the IPR Policy shall also apply to Licensed Vendor, and, in the event of any inconsistency between the IPR Policy and the Agreement, the IPR Policy shall govern. For the avoidance of doubt, the terms and conditions contained in these Terms will apply to the license of any Final Specifications previously licensed by Licensed Vendor under any earlier version of ODVA's Terms of Usage Agreement, even if such Final Specifications were not checked on the first page of this these Terms.

5.7. No Waiver. The waiver of any breach or default will not constitute a waiver of any other right hereunder or any subsequent breach or default.

5.8. Counterparts. The Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but collectively shall constitute one and the same instrument.

5.9. Compliance with Laws. Anything contained in the Agreement to the contrary notwithstanding, the obligations of the parties hereto shall be subject to all laws, present and future, of any government having jurisdiction over the parties hereto, and to orders, regulations, directions, or requests of any such government.

5.10. Force Majeure. No party shall be liable hereunder by reason of any failure or delay in the performance of its obligations hereunder on account of strikes, shortages, riots, insurrection, fires, flood, storm, explosions, acts of God, war, acts of terrorism, governmental action, labor conditions, earthquakes or other natural disaster, or any other cause that is beyond the reasonable control of such party.

5.11. Import and Export Controls. In connection with the Agreement, the parties shall comply with all applicable laws, including export, re-export, sanctions, and foreign policy controls and restrictions that may be imposed by any government, to the extent that compliance with such laws is not prohibited or penalized by U.S. law.

5.12. Third-Party Beneficiaries. Other Vendors are intended third-party beneficiaries of Sections 1.2 and 4.3 of these Terms, and all Members and ODVA are intended third-party beneficiaries of Section 2.2 of these Terms, for the sole purpose of enforcing directly against Licensed Vendor the rights and covenants provided thereunder.

5.13. Publicity. Licensed Vendor consents to the public disclosure and use of its name for purposes of publicly promoting Licensed Technology, including the use in statements regarding the conformance of Licensed Vendor's Compliant Products.

5.14. No Other Rights. Except as expressly set forth above, the Agreement shall not be construed as granting any rights or interests in or to (a) Essential Claims; (b) any improvements thereto; (c) any particular design, mode, or method; or (d) the proprietary rights of any party to the Agreement or any third party.

5.15. Notices. All notices hereunder shall be sent to the addresses indicated on the signature page to this Agreement. For purposes of this Section, notice can include notice by written mail, electronic mail, or by facsimile. Such notices shall be deemed served when sent. Any party may give written notice of a change of address and, after notice of such change has been received, any notice or request shall thereafter be given to such party at such changed address.

5.16. Name Change. ODVA may change the name of any Licensed Technology or the name by which the Agreement is identified. However, no such name change shall have any effect on the rights and obligations of the parties under the Agreement.

5.17. Headings. The parties acknowledge that the headings to the sections hereof are for reference purposes only and shall not be used in the interpretation of the Agreement.

5.18. Assignment. Licensed Vendor may not assign its rights or obligations under the Agreement without the prior written consent of ODVA. For purposes of the Agreement, an assignment shall be deemed to include a transfer or sale of all or substantially all of the business of Licensed Vendor, or a merger, consolidation, or other transaction or series of transactions that results in a change in Control of Licensed Vendor. Any purported assignment in violation of this Section shall be void.

5.19. Successors. The terms and provisions of the Agreement will be binding upon and inure to the benefit of ODVA's successors and assigns.

5.20. Modifications to the Agreement. No modifications or additions to or deletions from the Agreement, including these Terms, shall be binding unless accepted in writing by authorized representatives of each party; provided,

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however, that any non-substantive, ministerial changes (such as proofreading or formatting changes) made to the Agreement at any time by ODVA shall be effective upon written notice of such changes to Licensed Vendor without the need for written assent by Licensed Vendor.

5.21. Severability. If any provision or portion of the Agreement is, for any reason, held to be invalid or unenforceable, the other provisions and portions of the Agreement will remain enforceable and the invalid or unenforceable provision or portion will be deemed modified so that it is valid and enforceable to the maximum extent permitted by law.

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EXHIBIT B
TERMS AND CONDITIONS OF MEMBERSHIP

These Terms and Conditions of Membership (the "Membership Terms") constitute a legally binding agreement between ODVA, Inc. ("ODVA") and Entity (as a "Member") identified on the Application and Agreement for Membership and Terms of Usage, including all Exhibits and Schedules (collectively and together with the Membership Terms, the "Agreement"). The effective date of these Membership Terms shall occur on the date that all of the following conditions are met ("Membership Date"): (a) Entity has applied for ODVA membership, and the Application is accepted and approved by ODVA, except that if Entity is applying for the Principal Member class, it shall also require the approval of the ODVA Board of Directors, (b) ten (10) business days have passed after Entity has made a nonrefundable initiation fee and dues and assessments payment required for the current year for Entity's requested class of membership, along with all other fees and assessments due to meet the requirements for membership, and (c) Entity has executed the Agreement and such other documents and provided such other information as shall be required to demonstrate Entity's eligibility for membership in ODVA. Unless otherwise defined herein, capitalized terms used in these Membership Terms shall have the meanings set forth in Schedule A attached hereto and the Agreement.

1. Membership and Class.

1.1. Qualifications. The Member represents that it shall meet at all times the conditions and qualifications for membership in ODVA as defined by the Bylaws, and the qualifications for membership in the class of membership in which it belongs, as both appear at www.odva.org.

1.2. Participants. The Member shall ensure that its Designated Representative and other individuals from the Member who participate in activities of ODVA shall, at all times, be an employee, officer, director and/or sole owner of the Member and comply with all terms and conditions of the Agreement, including these Membership Terms.

1.3. Vendor Name and Identification Number. The privileges of membership in ODVA shall be bound to the Member's Vendor ID(s) assigned by ODVA. The Member shall, at all times, use the Vendor ID(s) assigned by ODVA and shall not change, loan or assign the Vendor ID(s), except to Affiliates as previously approved in writing by ODVA.

2. Term, Withdrawal and Termination.

2.1. Initial Term. The Agreement shall commence on the Membership Date and extend for twelve (12) months from the first day of the next quarter beginning on the months of January, April, July or October.

2.2. Renewal Terms. After the expiration date of the initial term, the Agreement shall renew automatically on the date of expiration of the initial term and continue for a second term of one (1) year. It will continue to renew automatically for indefinite, successive terms of one (1) year, unless terminated by the Member as provided in Section 2.4 herein or by ODVA as provided in Section 2.5 herein.

2.3. Change in Class. The Member may re-apply for membership in a different class of membership, provided at that time the Member is eligible to join the new class of members. In this case, the Agreement shall remain in effect until the date on which all the following conditions are met (the "New Membership Date") : (a) such Member has re-applied for membership in the new Class of Members and the application is accepted and approved by ODVA and (b) ten (10) business days have passed after such Member has made a nonrefundable dues initiation fee and annual dues payment equal to the current fees of the membership class, as well as any other fees and assessments owed to ODVA in order to fulfill the qualifications for membership and be admitted in "Good Standing" as defined in the Bylaws. The effect of these actions shall be that the Member shall have voluntarily withdrawn, per Section 2.4 herein, from the previous Class of Members in Good Standing and to have terminated these Membership Terms as of its New Membership Date in the new Class of Members. The Member shall, pursuant to Section 4 herein, notify ODVA immediately if it no longer meets the qualifications for the Class of Members to which it belongs, and re-apply for membership in a Class of Members for which it is qualified as described above in this section. If the Member fails to notify ODVA that it is no longer eligible for its class of membership and ODVA determines that the Member is no longer eligible for the class of which it is a member, the Member agrees that ODVA is authorized to change the member to the class of membership for which it is eligible and that the Member shall pay the dues, fees and assessments required of the Member's proper class or voluntarily withdraw from the membership as provided in Section 2.4 herein.

2.4. Withdrawal by the Member. The Member may voluntarily withdraw from the membership and terminate the Agreement at any time during its current term, by notifying ODVA, pursuant to Section 4 herein. The Member shall notify ODVA immediately, pursuant to Section 4 herein, if, at any time, it no longer meets the qualifications for membership in ODVA and voluntarily withdraws from the membership, or else its membership will be terminated by ODVA, as prescribed in the Bylaws and the Agreement. The Member shall notify ODVA of its withdrawal no later than one hundred twenty (120) calendar days prior to the beginning of the next renewal term of these Membership Terms in order to avoid its obligation for membership dues in the next renewal term. The Member, by complying with this notification requirement will be deemed to have withdrawn in Good Standing provided that the Member has fulfilled all other outstanding obligations with ODVA and under the Agreement.

2.5. Termination of Member by ODVA. ODVA may, as set out by the Bylaws in the Article pertaining to Membership, automatically remove the Member from the membership and terminate the Agreement if (a) the Member fails to maintain its Good Standing with ODVA, (b) the Member no longer meets the qualifications for Membership in ODVA, or (c) if it is determined that the Member, its Designated Representatives, or any of its Participants has violated any material agreement with ODVA or any Intellectual Property, Antitrust/Competition, Confidentiality, or other Policy of ODVA. The Member may be expelled from membership for good cause shown as set out by the Bylaws in the Article pertaining to Membership.

3. Important Member Obligations.

The Member, its Designated Representative, and all of its Participants in ODVA (referenced collectively within this Section 3 as "Member") shall comply, at all times, with the following obligations:

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3.1. Bylaws. The Member shall abide by the terms of the Bylaws as they appear at www.odva.org and as the same may from time to time be amended in the future pursuant to Section 3.4 herein.

3.2. Policy Regarding Intellectual Property ("IPR Policy") and Other Policies. The Member shall abide by the terms of (a) the IPR Policy of ODVA as it appears at www.odva.org and (b) any other Policies developed by ODVA as they appear at www.odva.org and as the IPR Policy or such other Policies may from time to time be amended in the future pursuant to Section 3.4 herein. The Member acknowledges that some of its rights and obligations under the IPR Policy or other Policies may precede, survive or change after the termination of the Agreement as more fully described in the IPR Policy or such other Policies.

3.3. Conformance with Antitrust and Competition Laws. It is the express policy of ODVA to require that all of its activities be conducted strictly in accordance with all applicable law including antitrust and competition laws. It is essential that the Member be aware of the types of activities prohibited by these laws. If the Member has any specific questions relating to its compliance with these laws in connection with its membership and participation in ODVA, it should seek advice from its own legal counsel.

3.4. Amendments and Additions to Bylaws and Policies. ODVA may amend its Bylaws, IPR Policy, or other Policies, or may adopt additional Policies at any time, in its sole discretion, and the Member agrees to abide by the terms thereof. If the Member does not wish to be bound by one or more of the amendments or additions, the Member may voluntarily withdraw from membership pursuant to Section 2.4 herein.

3.5. Dues, Fees and Assessments. The Member shall make timely payment for its membership dues and all fees and assessments associated with its participation in ODVA. ODVA may change the charges for dues, fees and assessments at any time in its sole discretion. If the Member does not wish to accept one or more changes in these charges, the Member may voluntarily withdraw from membership, pursuant to Section 2.4 herein. Unless otherwise explicitly provided in the Bylaws, in the event of any termination or withdrawal of the Member's membership, any fees that are then due and owing shall remain payable, and no refund shall be made of any dues or fees previously paid.

3.6. Confidentiality. The Member shall not disclose information provided to it by ODVA and marked as "ODVA Confidential."

3.7. Good Standing. The Member must, at all times, remain in Good Standing with ODVA and abide by the terms of the Agreement and ODVA Policies.

4. Notification

All notifications shall be in the English language.

4.1. From the Member to ODVA. Notifications identified in the Agreement from the Member to ODVA shall be submitted in writing to the headquarter offices of ODVA at the address specified at www.odva.org.

4.2. From ODVA to the Member. Except to the extent explicitly required or permitted by the Bylaws or a Policy of ODVA, all notifications relevant to the Agreement from ODVA to the Member shall be delivered to the Designated Representative in the official membership records of ODVA. ODVA may make delivery of such notifications by providing the Designated Representative with a notice of the URL where the notification can be retrieved at www.odva.org.

5. Miscellaneous.

5.1. Location of Information. The Internet web site of ODVA at www.odva.org may be superseded by successor web sites or another type of location as determined by ODVA, subject to the notification provision in Section 4.2 herein.

5.2. Assignment. The Member may not assign its rights or obligations under the Agreement, including these Membership Terms, without the prior written consent of ODVA. For purposes of the Agreement, an assignment shall be deemed to include a transfer or sale of all or substantially all of the business of Member, or a merger, consolidation, or other transaction or series of transactions that results in a change in Control of Member. Any purported assignment in violation of this Section shall be void.

5.3. Disclosure. ODVA may publish or otherwise disclose information concerning its membership, including but not limited to possible filings with relevant government agencies as may be deemed advisable by ODVA from time-to-time. Applicant/Member hereby appoints the Executive Director of ODVA, or his/her successors, as Applicant's/Member's agent to approve the form and substance of any such publication or disclosure.

5.4. Warranty Disclaimer. MEMBER (ON BEHALF OF ITSELF AND ALL ITS AFFILIATES, DESIGNATED REPRESENTATIVE AND PARTICIPANTS IN ODVA) ACKNOWLEDGES THAT THE ODVA MEMBERSHIP, SPECIFICATIONS, STANDARDS, PRODUCTS AND SERVICES ARE PROVIDED "AS IS" WITH NO WARRANTIES WHATSOEVER, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND THE MEMBERS, THEIR AFFILIATES AND REPRESENTATIVES, THE ODVA EXECUTIVE DIRECTOR, THE ODVA BOARD OF DIRECTORS, AND ODVA EXPRESSLY DISCLAIM ANY WARRANTY OF MERCHANTABILITY, NON-INFRINGEMENT, FITNESS FOR ANY PARTICULAR OR INTENDED PURPOSE, OR ANY OTHER WARRANTY OTHERWISE ARISING OUT OF ANY PROPOSAL, SPECIFICATION, STANDARD OR CONTRIBUTION.

5.5. Limitation of Liability. IN NO EVENT WILL ODVA OR ANY OF ITS CONSTITUENT PARTS (INCLUDING, BUT NOT LIMITED TO, THE ODVA BOARD OF DIRECTORS, THE ODVA EXECUTIVE DIRECTOR, MEMBERS OR THEIR AFFILIATES, REPRESENTATIVES OR PARTICIPANTS) BE LIABLE TO ANY OTHER PERSON OR ENTITY FOR ANY LOSS OF PROFITS, LOSS OF USE, INCIDENTAL, CONSEQUENTIAL, INDIRECT OR SPECIAL DAMAGES, WHETHER UNDER CONTRACT, TORT, WARRANTY OR OTHERWISE, ARISING IN ANY WAY OUT OF THE AGREEMENT, INCLUDING THESE MEMBERSHIP TERMS, OR ANY RELATED AGREEMENT OR POLICY, WHETHER OR NOT SUCH PARTY HAD ADVANCE NOTICE OF THE POSSIBILITY OF SUCH DAMAGES.

5.6. Governing Law. The Agreement and any Policies of ODVA shall be construed under and governed by the laws of Michigan, U.S.A., without reference to conflict-of-laws principles. The Agreement, including all Schedules and Exhibits, sets forth the entire understanding of ODVA and Member and supersedes all prior agreements and understandings relating hereto, unless otherwise stated in the Agreement. No modifications or additions to or deletions from the Agreement, including these Membership Terms, shall be binding unless accepted in writing by authorized representatives of ODVA and Member; provided, however, that any non-substantive, ministerial changes (such as proofreading or formatting changes) made to

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the Agreement at any time by ODVA shall be effective upon written notice of such changes to Member without the need for written assent by Member. The waiver of any breach or default will not constitute a waiver of any other right hereunder or any subsequent breach or default. The Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but collectively shall constitute one and the same instrument. In the case of any conflict between the terms of the Agreement, including these Membership Terms, and the terms of the Bylaws or any other Policy, the Bylaws or such Policy shall supersede the terms of the Agreement.

5.7. Severability. If any provision or portion of the Agreement is, for any reason, held to be invalid or unenforceable, the other provisions and portions of the Agreement will remain enforceable and the invalid or unenforceable provision or portion will be deemed modified so that it is valid and enforceable to the maximum extent permitted by law.

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SCHEDULE A
DEFINITIONS

1. "Affiliate" means, without limitation, any individual, corporation, partnership, sole proprietorship, joint venture, business unit or division, employee benefit plan, trust, or other enterprise that, directly or indirectly through one or more intermediaries, controls, is controlled by, or is under common control with, another entity, so long as such control exists.
2. "CIP" means the Common Industrial Protocol Final Specification published by ODVA.
3. "Compliant Products" means only those specific portions of products (hardware, software, or combinations thereof), not necessarily the product as a whole, that implement and conform with all relevant required portions of the Licensed Technology.
4. "Control" means (a) direct or indirect beneficial ownership of or the right to exercise decision-making authority with respect to (i) more than fifty percent (50%) of the voting stock or equity in an entity; or (ii) more than fifty percent (50%) of the relevant ownership interest or decision-making authority representing the right to make the decisions for the subject entity in the event that there is no voting stock or equity; or (b) actual working control of an entity, in whatever manner exercised, including, but not limited to, the right, through a management agreement or otherwise, to direct how the intellectual property of an entity is protected, used, or licensed to others or how the day-to-day operations of the entity are conducted.
5. "Declaration of Conformity" means the official report that is issued by ODVA that certifies that ODVA has determined a product is compliant with the applicable Licensed Technology and the Licensed Vendor is compliant with its Terms of Usage Agreement.
6. "Essential Claims" means all claims in any patent or patent application in any jurisdiction in the world that would necessarily be infringed by implementation of a Final Specification. A patent claim is necessarily infringed hereunder only when it is not possible to avoid infringing it because there is no commercially reasonable non-infringing alternative for implementing the Final Specification. Existence of a non-infringing alternative shall be judged based on the state of the art at the time the Final Specification is approved by the Technical Review Board of ODVA. Notwithstanding the foregoing, the following are expressly excluded from and shall not be deemed to constitute Essential Claims: (a) any claims that may be contained in the same patent or patent application as Essential Claims but are not themselves Essential Claims as defined above; (b) claims that would be infringed only by: (i) portions of any product and any combination of products (or portions of products) that are not necessary for conformance with any element of the Final Specification, including, but not limited to, any "required," "optional," or "suggested" element referred to in the Final Specification; (ii) enabling technologies that may be necessary to make or use any product or portion thereof that conforms with the Final Specification and are not themselves expressly set forth in the Final Specification (e.g., semiconductor manufacturing technology, compiler technology, object oriented technology, operating system technology, and the like); or (iii) the implementation or use of technology, specifications, or standards developed elsewhere (i.e., outside of ODVA) and merely incorporated by reference into the body of the Final Specification; and (c) design patents and design registrations.
7. "Final Specification" means any technical specification or other technical standard adopted and approved for publication by the Technical Review Board of ODVA as a final specification in accordance with ODVA's standard development/adoption procedures (e.g., DeviceNet® Specification, EtherNet/IP™ Specification, CompoNet® Specification, ControlNet® Specification, and CIP Safety™ Specification).
8. "Identity Guidelines" means the guidelines available on the ODVA website (currently www.ODVA.org) that have been developed by ODVA to ensure the accurate and consistent use of its trademarks, logos, and other identity elements by third parties.
9. "Licensed Technology" means CIP and the Final Specification(s) for the interface or adaptation of CIP checked under Section 3 on the fourth page of this Agreement that Licensed Vendor wishes to implement in its Compliant Products, as well as any other Final Specification(s) previously licensed by Licensed Vendor under any earlier version of ODVA's Terms of Usage Agreement.
10. "Member" means any company, organization, or other entity that applies for and is accepted by ODVA into any class of voting or nonvoting membership, or any other Person (such as certain invited experts) that is deemed to be a Member under the IPR Policy.
11. "Other Vendors" means (a) all Members of ODVA; and (b) any other Person that has entered into an agreement substantially similar to this Agreement with ODVA.
12. "Person" means any individual, corporation, partnership, sole proprietorship, joint venture, trust, limited liability company, business association, governmental entity, or other entity.
13. "Policies" means the governing documents and policies of ODVA as may be adopted and amended from time to time, including the Bylaws, the IPR Policy, and any other policies, agreements, guidelines or procedures developed by ODVA as they appear at www.odva.org.
14. "Vendor ID" means the vendor identification number for a particular Licensed Technology assigned to Licensed Vendor by ODVA to which the privileges of this Agreement are bound.

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SCHEDULE B
SUPPLEMENTAL LICENSE REQUIREMENTS FOR ODVA TECHNOLOGIES

EtherNet/IP

The Licensed Vendor shall:

1. Be a Licensed Vendor for all ODVA technologies for which it makes and sells products;
2. Be in compliance with the Terms of Usage Agreement; and
3. Obtain and maintain a Vendor ID for EtherNet/IP.
4. For **CIP Safety on EtherNet/IP**, the Licensed Vendor shall obtain and maintain safety certifications for its CIP Safety Compliant Products from an ODVA-recognized competent body for the certification of functional safety products.

DeviceNet

The Licensed Vendor shall:

1. Be a Licensed Vendor for all ODVA technologies for which it makes and sells products;
2. Be in compliance with the Terms of Usage Agreement; and
3. Obtain and maintain a Vendor ID for DeviceNet.
4. For **CIP Safety on DeviceNet**, the Licensed Vendor shall obtain and maintain safety certifications for its CIP Safety Compliant Products from an ODVA-recognized competent body for the certification of functional safety products.

ControlNet

The Licensed Vendor shall:

1. Be a Licensed Vendor for all ODVA technologies for which it makes and sells products;
2. Be in compliance with the Terms of Usage Agreement; and
3. Obtain and maintain a Vendor ID for ControlNet.

CompoNet

The Licensed Vendor shall:

1. Be a Licensed Vendor for all ODVA technologies for which it makes and sells products;
2. Be in compliance with the Terms of Usage Agreement; and
3. Obtain and maintain a Vendor ID for CompoNet.

CIP Safety on SERCOS III

The Licensed Vendor shall:

1. Be a Licensed Vendor for all ODVA technologies for which it makes and sells products;
2. Be in compliance with the Terms of Usage Agreement;
3. Hold required licenses/authorizations from SERCOS International for SERCOS III;
4. Obtain and maintain a Vendor ID for SERCOS III; and
5. Obtain and maintain safety certifications for its CIP Safety Compliant Products from an ODVA-recognized competent body for the certification of functional safety products.

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SCHEDULE C
SUBMISSION OF APPLICATION AND PAYMENT OF DUES AND FEES FOR MEMBERSHIP

As of October 15, 2025

1. METHOD OF SUBMISSION OF APPLICATION

Applicants should submit their applications online via www.odva.org. For other options, please contact ODVA.

2. PAYMENT

The total amount due upon acceptance by ODVA of this application, by class of membership and, if applicable, the number of employees, is shown in the table below.

Dues and Fees for Membership

Charges	Regular	Associate	Principal
Initiation Fee	$6000 (Waived for first-time applicant)	$2000 (Waived for first-time applicant)	$75,000
First Year Annual Dues	$6,000	$2,000	$75,000
Total Amount Due	**$6,000**	**$2,000**	**$150,000**

Payment for total amount due must be remitted to: ODVA, Inc. and paid in cash (via wire transfer, electronic funds transfer or check) per invoice from ODVA.

Upon receipt of this application, ODVA will issue an invoice for the total amount due to the applicant. This application and the payment for first year of total amount due must be submitted prior to final approval of the application for membership. If ODVA does not approve the application, dues and fees will be refunded. Notwithstanding anything to the contrary set forth in the Application and Agreement for Membership and Terms of Usage, including all Exhibits and Schedules thereto, ODVA reserves the right to change the ODVA membership dues and fees from time to time at its discretion.

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